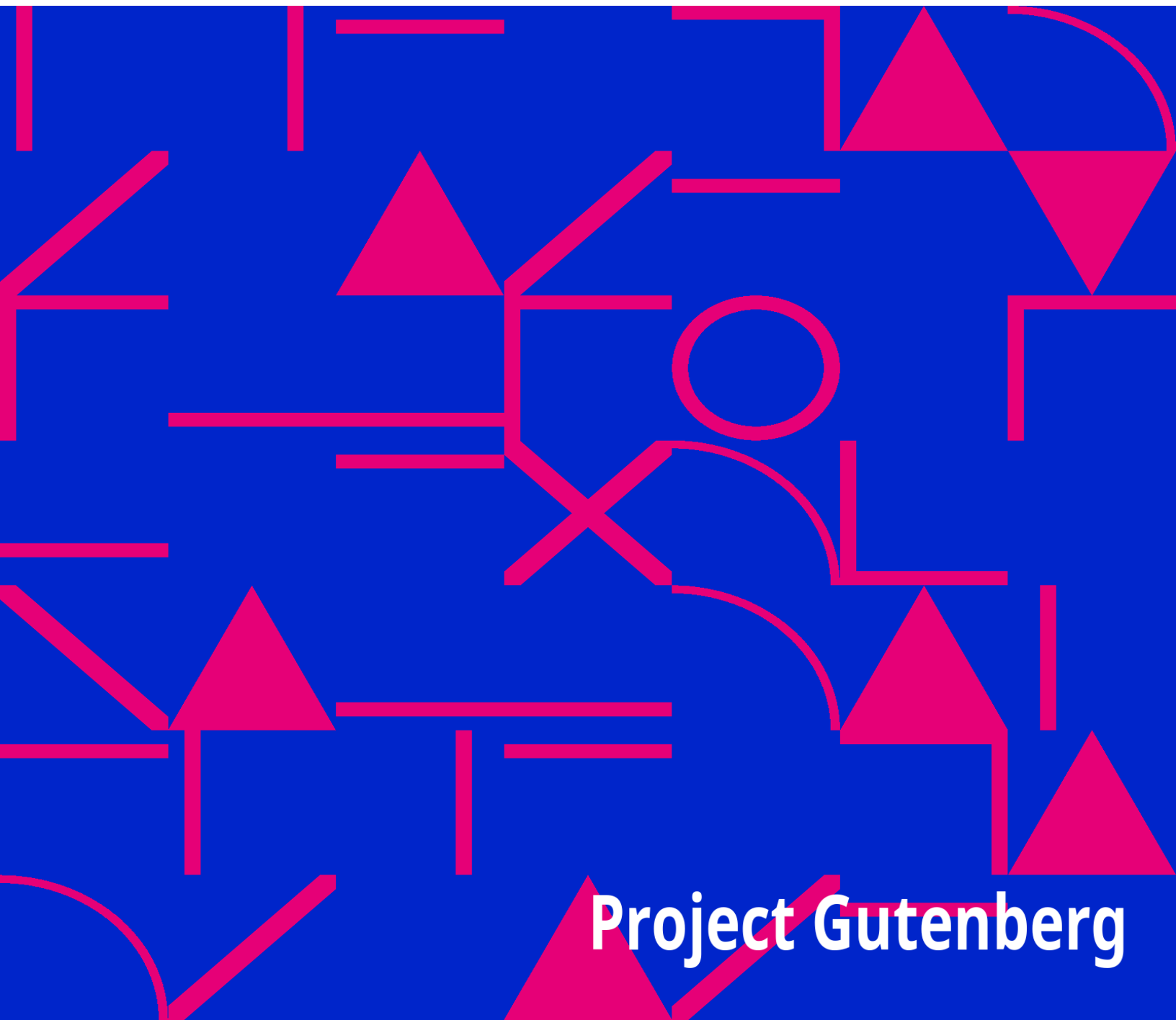


The Pain and Sorrow of Evil Marriage

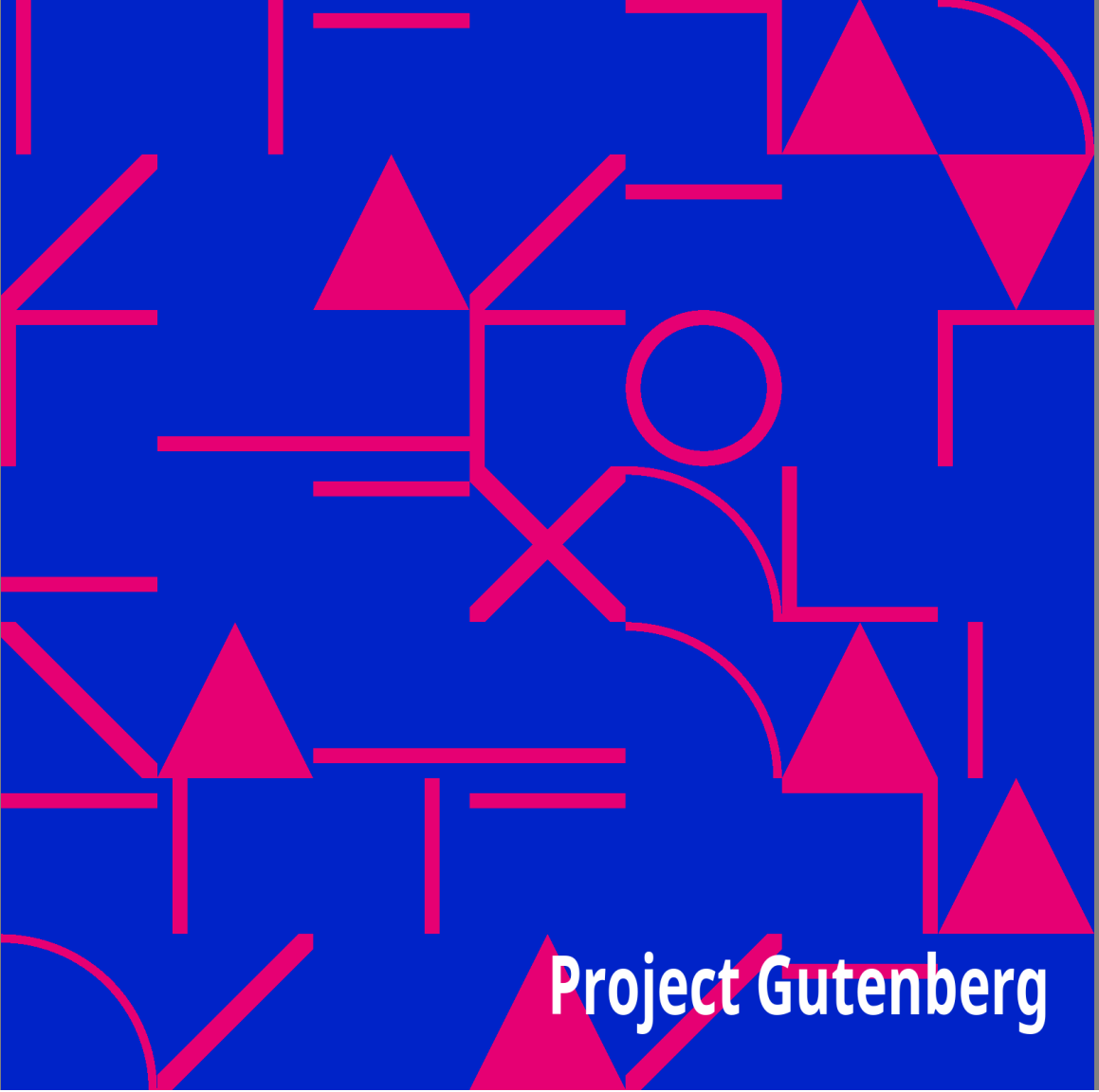
Wynkyn de Worde

The background of the lower half of the image is a solid blue field. Overlaid on this is a complex, abstract pattern of bright red geometric shapes and lines. These include various line segments, some horizontal, some vertical, and some at diagonal angles. There are also several triangles of different sizes and orientations, some pointing upwards and some downwards. A single circle is visible in the center-right area. The overall effect is a dense, non-representational composition of primary colors.

Project Gutenberg

The Pain and Sorrow of Evil Marriage

Wynkyn de Worde



Project Gutenberg

The Project Gutenberg eBook of The Pain and Sorrow of Evil Marriage

This eBook is for the use of anyone anywhere in the United States and most other parts of the world at no cost and with almost no restrictions whatsoever. You may copy it, give it away or re-use it under the terms of the Project Gutenberg License included with this eBook or online at www.gutenberg.org. If you are not located in the United States, you will have to check the laws of the country where you are located before using this eBook.

Title: The Pain and Sorrow of Evil Marriage

Author: Wynkyn de Worde

Release date: May 20, 2010 [eBook #32445]

Most recently updated: January 6, 2021

Language: English

Other information and formats: www.gutenberg.org/ebooks/32445

Credits: Produced by Irma Spehar and the Online Distributed Proofreading Team at <https://www.pgdp.net> (This file was produced from images generously made available by The Internet Archive/Canadian Libraries)

***** START OF THE PROJECT GUTENBERG EBOOK THE PAIN AND
SORROW OF EVIL MARRIAGE *****

THE
PAIN AND SORROW
OF
EVIL MARRIAGE.

FROM AN UNIQUE COPY
Printed by Wynkyn de Worde.

LONDON:
REPRINTED FOR THE PERCY SOCIETY,
BY C. RICHARDS, ST. MARTIN'S LANE.
MDCCCXL.

COUNCIL
OF
The Percy Society.

J. A. CAHUSAC, Esq. F.S.A.

WILLIAM CHAPPELL, Esq. F.S.A.

JOHN PAYNE COLLIER, Esq. F.S.A.

T. CROFTON CROKER, Esq. F.S.A.

REV. ALEXANDER DYCE.

RICHARD HALLIWELL, Esq. F.S.A.

JAMES ORCHARD HALLIWELL, Esq. F.R.S. Treasurer

WILLIAM JERDAN, Esq. F.S.A.

SAMUEL LOVER, Esq.

CHARLES MACKAY, Esq.

E. F. RIMBAULT, Esq. *Secretary.*

THOMAS WRIGHT, Esq. M.A. F.S.A.

INTRODUCTION.

THERE are three early humorous tracts in verse upon the subject of marriage, all printed by Wynkyn de Worde: only one of them has a date, 1535, but we can have little difficulty in assigning the two others to about the same period. They have the following titles.

1. "A complaynt of them that be to soone maryed."
2. "Here begynneth the complaynte of them that ben to late maryed."
3. "The payne and sorowe of evyll maryage."

The last we have printed entire in the following pages, and of the two others, Dr. Dibdin has inserted a brief account in his edition of Ames (Typ. Ant. II. 384). We propose to go more at large into a description of the contents of these ancient and facetious relics.

We have reason to believe that the two first are translations; and in default of English expressions, especially in the second piece, the writer has employed, and sometimes anglicised, several of the French words, which he thought better adapted to his purpose. To this production, "the Auctour," as he calls himself, has subjoined a sort of epilogue, which ingeniously includes the printer's colophon, as follows:

"Here endeth the complaynt of to late maryed,
For spendynge of tyme or they a borde
The sayd holy sacramente have to longe taryed,
Humane nature tassemble and it to accorde.
Enprynted in Fletestrete by Wynkyn de Worde,
Dwellynge in the famous cyte of London,
His hous in the same at the sygne of the Sonne."

At the conclusion of the "complaynt of them that be to soone maryed," the date of 1535 has also been interwoven. Wynkyn de Worde's will was proved the 19th January, 1534, which, according to our present mode of computing the year, would be the 19th January, 1535; so that either this piece came out after his death, or it was printed just before that event, and

in anticipation of the new year, which would not then commence until the 26th March.

Each of the tracts has a wood-cut on the titlepage, but only that called “The payne and sorowe of evyll maryage,” can be said to have anything to do with the subject, and that no doubt had been used for other works: it represents a marriage ceremony,—a priest joining the hands of a couple before the altar.

The “complaynt of them that be to soone maryed” opens with the following stanza:

“For as moche as many folke there be
That desyre the sacrament of weddyng,
Other wyll kepe them in vyrgyny[t]e,
And toyll in chastyte be lyvyng;
Therefore I wyll put now in wrytyng
In what sorowe these men lede theyr lyves,
That to soone be coupled to cursed Wyves.”

Thence the author proceeds to give some very sage and serious advice upon the evil of too hasty matrimonial alliances, but he does not attempt much humour until he comes to describe the conduct of his wife (for he writes in the first person throughout) when they had been married eight days: until then he had not been “chydden ne banged,” but he suffered for it bitterly afterwards;

“But soone ynoughe I had assayes
Of sorowe and care that made me bare.”

It may here be observed that the stanza is peculiar, and consists of eight lines, the four first lines rhyming alternately, the fifth rhyming with the fourth, then a line with a new rhyme, while the seventh line rhymes with the third and fourth, and the eighth with the sixth. He continues the narrative of his sufferings in the following manner:

“About eyght dayes, or soone after
Our maryage, the tyme for to passe
My wyfe I toke, and dyd set her
Upon my knee for to solace;
And began her for to embrace,
Sayenge, syster, go get the tyme loste;
We must thynke to labour a pace
To recompence that it hathe us coste.

“Than for to despyte she up arose,
And drewe her faste behynde me,
To me sayenge, is this the glose?
Alas, pore caytyfe, well I se
That I never shall have, quod she,
With you more than payne and tormente:
I am in an evyll degre;
I have now loste my sacramente.

“For me be to longe with you here,
Alas, I ought well for to thynke
What we sholde do within ten yere,
Whan we shall have at our herte brynke
Many chyldren on for to thynke,
And crye after us without fayle
For theyr meate and theyr drynke;
Then shall it be no mervayle.

“Cursed be the houre that I ne was
Made a none in some cloyster,
Never there for to passe;
Or had be made some syster,
In servage with a clousterer.
It is not eyght dayes sythe oure weddyng
That we two togyther weere:
By god, ye speke to soone of werkyng.”

The second piece of ancient *facetiae*, “the complaynte of them that ben to late maryed,” is written with much more humour, and is far better worth preservation, but it is disfigured by indelicacy, though not of the grossest kind, and never introduced but for the sake of heightening the drollery. It is the lamentation of an elderly gentleman, who after a youth of riot had married a young frolicsome wife, and he relates very feelingly the inconveniences, annoyances, and jealousies to which he is thereby exposed. After two introductory stanzas, (all of them are in the ordinary seven-line ballad form) he thus states his resolution late in life to commit the folly of matrimony.

“To longe have I lyved without ony make;
All to longe have I used my yonge age:
I wyll all for go and a wyfe to me take
For to increase both our twoos lynage;
For saynt John sayth that he is sage
That ayenst his wyll doth him governe,
And our lordes precepte hym selfe for to learne

“There is no greter pleasure than for to have

A wyfe that is full of prudence and wysdome.
Alas, for love nygh I am in poynte to rave.
These cursed olde men have an yll custome
Women for to blame, both all and some;
For that they can not theyr myndes full fyll,
Therefore they speke of them but all yll.

“Now, syth that I have my tyme used
For to follow my folyshe pleasaunces,
And have my selfe oftentimes sore abused
At plaies and sportes, pompes and daunces,
Spendynge golde and sylver and grete fynaunces,
For faut of a wyfe the cause is all:
To late maryed men may me call.”

Hence he proceeds to narrate his early courses, especially his amours with “mercenary beauties.” He says:—

“Yf I withhelde ony praty one,
Swetely ynough she made me chere,
Sayenge that she loved no persone
But me, and therto she dyde swere.
But whan I wente fro that place there,
Unto another she dyde as moche;
For they love none but for theyr poche.”

His male companions were about upon a par with his female, and upon both he wasted his substance; but having at last married, he imagined that he had only to enjoy tranquillity and happiness, and exclaimed:—

“Now am I out of this daunger so alenge,
Wherfore I am gladde it for to persever.
Longe about have I ben me for to renge;
But it is better to late than to be never.
Certes I was not in my lyfe tyll hyther
So full of joye, that doth in my herte inspyre:
Wedded folke have tyme at theyr desyre.”

On trying the experiment, he by no means finds it answer his expectation. Besides other evils, he says, “constrayned I am to be full of jealousy;” and he admits in plain terms that his young wife has no great reason to be satisfied with her old husband. He observes:—

“It is sayd that a man in servytude
Hym putteth, whan he doth to woman bende:
He ne hath but only habytude
Unto her the whiche well doth hym tende.
Who wyll to householde comprehende,

And there a bout studyeth in youth alwayes,
He shall have honoure in his olde dayes.

“Some chyl dren unto the courtes hauntes,
And ben purvayed of benefyces;
Some haunteth markettes and be marchauntes,
Byenge and sellynge theyr marchaundyses;
Or elles constytuted in offyces.
Theyr faders and moders have grete solace,
That to late maryed by no waye hase.

“I be wayll the tyme that is so spent,
That I ne me hasted for to wedde;
For I shall have herytage and rente,
Both golde and sylver and kynred;
But syth that our lorde hath ordeyned
That I this sacrament take me upon,
I wyll kepe it trewely at all season.”

In the subsequent stanza, which occurs soon afterwards, the author seems to allude to the first of the three tracts now under consideration.

“Yf that there be ony tryfelers,
That have wyllled for to blame maryage,
I dare well saye that they ben but lyers,
Or elles god fayled in the fyrste age:
Adam bereth wytnesse and tesmonage:
Maryed he was, and comen we ben.
God dyde choyse maryage unto all men.”

This stanza affords an instance of the employment of an anglicised French word because it happened to answer the translator’s purpose as a rhyme to “age.” His objection is not to marriage generally, but to marriage when a man has ceased to be the subject of amorous affection; for he says expressly,

“All they that by theyr subtyll artes
Hath wyllled for to blame maryage,
I wyll susteyne that they be bastardes,
Or at least wage an evyll courage,
For to saye that therein is servage
In maryage; but I it reny,
For therin is but humayne company.

“Yf ther be yll women and rebell,
Shrewed, dyspytous, and eke felonyous,
There be other fayre, and do full well,
Propre, gentyll, lusty and joyous,
That ben full of grace and vertuous;

They ben not all born under a sygnet:
Happy is he that a good one can get.”

He adds just afterwards:—

“Galantes, playne ye the tyme that ye have lost,
Mary you be tyme, as the wyse man sayth.
Tossed I have ben fro pyler to post
In commersynge natures werke alwayes.
I have passed full many quasy dayes,
That now unto good I can not mate,
For mary I dyde my selfe to late.”

In the second line we ought to read “sayes” for “sayth,” as the rhyme evidently shews. The last stanza of the body of the poem is in the same spirit.

“Better it is in youth a wyfe for to take,
And lyve with her to goddes pleasaunce,
Than to go in age, for goddes sake,
In worldly sorowe and perturbaunce,
For youthes love and utteraunce,
And than to dye at the last ende,
And be dampned in hell with the foule fende.”

The three terminating stanzas consist of a supplementary address from “the Auctour,” the last containing the imprint or colophon as already inserted. The work is ended by Wynkyn de Worde’s well known tripartite device.

We now proceed to insert, in its entire shape, the third tract upon this amusing subject, premising that (like our preceding quotations) it is from an unique copy. It will remind the reader in several places of passages in the Prologue of Chaucer’s “Wife of Bath,” especially where she remarks,

“Thou sayst droppyng houses, and eke smoke,
And chidyng wyves maken men to flee
Out of her owne houses. Ah, benedicite!
What ayleth suche an olde man for to chide?”

But the Wife of Bath does not quote Solomon for the proverb, as we find him referred to on p. 20. Again, in a subsequent stanza, p. 21, we are strongly reminded of the lines where the Wife of Bath thus describes her conduct after she had married her fifth husband:—

“Therefore made I my visytations

To vigilles, and to processyons,
To preachyng eke, and to pilgrymages,
To playes of myracles, and to mariages,
And weared on my gay skarlet gytes.”

The main difference is that instead of saying, with Chaucer, that women frequent “playes of myracles,” the author of the ensuing tract tells us that they delight “on scaffoldes to sytte on high stages,” from whence they usually beheld such performances. Throughout, the writer seems to have had our great early poet more or less in his eye, and hence we may possibly conclude, that if the two other pieces on the same subject were translations, this was original. It, therefore, deserves the more attention.

**The Payne and Sorowe
of
Evyl Maryage.**

THE PAYNE AND SOROWE OF EVYLL MARYAGE.

TAKE hede and lerne, thou lytell chylde, and se
That tyme passed wyl not agayne retourne,
And in thy youthe unto vertues use the:
Lette in thy brest no maner vyce sojourne,
That in thyne age thou have no cause to mourne
For tyme lost, nor for defaute of wytte:
Thynke on this lesson, and in thy mynde it shytte.

Glory unto god, lovyng and benyson
To Peter and Johan and also to Laurence,
Whiche have me take under proteccyon
From the deluge of mortall pestylence,
And from the tempest of deedly vyolence,
And me preserve that I fall not in the rage
Under the bonde and yocke of maryage.

I was in purpose to have taken a wyfe,
And for to have wedded without avysednes
A full fayre mayde, with her to lede my lyfe,
Whome that I loved of hasty wylfulnes,
With other fooles to have lyved in dystresse,
As some gave me counseyle, and began me to constrayn
To have be partable of theyr woofull payne.

They laye upon me, and hasted me full sore,
And gave me counseyle for to have be bounde,
And began to prayse eche daye more and more
The woofull lyfe in whiche they dyd habounde,
And were besy my gladnes to confounde,
Themselfe rejoysynge, bothe at even and morowe,
To have a felowe to lyve with them in sorowe.

But of his grace god hath me preserved
By the wyse counseyle of these aungelles thre:
From hell gates they have my lyfe conserved
In tyme of warre, whan lovers lusty,
And bryght Phebus was fresshest unto se
In Gemyngys, the lusty and glad season,
Whan to wedde caught fyrst occasyon.

My joye was sette in especyall
To have wedded one excellent in fayrnes,

And thugh her beaute have made my selfe thrall
Under the yocke of everlastynge dystresse;
But god alonely of his high goodnes
Hath by an aungell, as ye have herde me tell,
Stopped my passage from that peryllous hell.

Amonge these aungelles, that were in nombre thre,
There appered one out of the southe,
Whiche spake fyrst of all the trynyte
All of one sentence, the mater is full couthe;
And he was called Johan with the golden mouthe,
Which concluded by sentence full notable,
Wyves of custome ben gladly variable.

After this Johan, the story sayth also,
In confymacyon of theyr fragylte,
How that Peter, called acorbylio,
Affermeth playnly, how that wyves be
Dyverse of herte, full of duplycyte,
Mayterfull, hasty, and eke proude,
Crabbed of langage whan they lyst crye aloude.

Who taketh a wyfe receyveth a great charge,
In whiche he is full lyke to have a fall:
With tempest tossed, as is a besy barge;
There he was fre he maketh hymselfe thrall.
Wyves of porte ben full imperyall,
Husbandes dare not theyr lustes gaynsaye,
But lovely please and mekely them obaye.

The husbandes ever abyde in travayle;
One labour passed there cometh an other newe,
And every daye she begynneth a batayle,
And in complaynyng chaungeth chere and hewe.
Under suche falsnes she fayneth to be true;
She maketh hym rude as is a dull asse,
Out of whose daunger impossyble is to passe.

Thus wedlocke is an endlesse penaunce,
Husbandes knowe that have experyence,
A martyrdom and a contynuaunce
In sorowe everlastynge, a deedly vyolence;
And this of wyves is gladly the sentence
Upon theyr husbandes, whan they lyst to be bolde,
How they alone governeth the housholde.

And yf her husbände happen for to thryve,
She sayth it is her prudent purveyaunce:
If they go abacke ayenwarde and unthryve,
She sayth it is his mysgovernaunce.
He bereth the blame of all suche ordynaunce;

And yf they be poore and fall in dystresse,
She sayth it is his folly and lewdnesse.

And yf so be he be no werkman good,
It may well happe he shall have an horne,
A large bone to stuffe with his hood;
A mowe behynde, and fayned cheere before:
And yf it fall that theyr good be lorne
By aventure, eyther at even or morowe,
The sely husbände shall have all the sorowe.

An husbände hath greate cause to care
For wyfe, for chylde, for stuffe and meyne,
And yf ought lacke she wyll bothe swere and stare,
He is a wastour and shall never the:
And Salomon sayth there be thynges thre,
Shrewde wyves, rayne, and smokes blake
Make husbändes ofte theyr houses to forsake.

Wyves be beestes very unchaungeable
In theyr desyres, whiche may not staunched be,
Lyke a swalowe whiche is insacyable:
Peryllous caryage in the trouble see;
A wawe calme full of adversyte,
Whose blandysshyng endeth with myschaunce,
Called Cyrenes, ever full of varyaunce.

They them rejoyce to se and to be sene,
And for to seke sondrye pylgrymages,
At greate gaderynges to walke on the grene,
And on scaffoldes to sytte on hygh stages,
If they be fayre to shewe theyr vysages;
And yf they be foule of loke or countenaunce,
They it amende with pleasyng dalyaunce.

And of profyte they take but lytell hede,
But loketh soure whan theyr husbändes ayleth ought;
And of good mete and drynke they wyll not fayle in dede,
What so ever it cost they care ryght nought;
Nor they care not how dere it be bought,
Rather than they should therof lacke or mysse,
They wolde leever laye some pledge ywys.

It is trewe, I tell you yonge men everychone,
Women be varyable and love many wordes and stryfe:
Who can not appease them lyghtly or anone,
Shall have care and sorowe all his lyfe,
That woo the tyme that ever he toke a wyfe;
And wyll take thought, and often muse
How he myght fynde the maner his wyfe to refuse.

But that maner with trouth can not be founde,
Therefore be wyse or ye come in the snare,
Or er ye take the waye of that bounde;
For and ye come there your joye is tourned unto care,
And remedy is there none, so may I fare,
But to take pacyens and thynke none other way aboute;
Than shall ye dye a martyr without ony doute.

Therefore, you men that wedded be,
Do nothyng agaynst the pleasure of your wyfe,
Than shall you lyve the more meryly,
And often cause her to lyve withouten stryfe;
Without thou art unhappy unto an evyll lyfe,
Than, yf she than wyll be no better,
Set her upon a lelande and bydde the devyll fet her.

Therefore thynke moche and saye nought,
And thanke God of his goodnesse,
And prece not for to knowe all her thought,
For than shalte thou not knowe, as I gesse,
Without it be of her own gentylnesse,
And that is as moche as a man may put in his eye,
For, yf she lyst, of thy wordes she careth not a flye.

And to conclude shortly upon reason,
To speke of wedlocke of fooles that be blente,
There is no greter grefe nor feller poyson,
Nor none so dredeful peryllous serpent,
As is a wyfe double of her entent.
Therefore let yonge men to eschew sorowe and care
Withdrowe theyr fete or they come in the snare.

FINIS.

Here endeth the payne and sorowe of evyll maryage. Imprynted at
London in Fletestrete at the signe of the Sonne, by me Wynkyn de Worde.

C. RICHARDS, PRINTER, 100, ST. MARTIN'S LANE, CHARING CROSS.

*** END OF THE PROJECT GUTENBERG EBOOK THE PAIN AND
SORROW OF EVIL MARRIAGE ***

Updated editions will replace the previous one—the old editions will be renamed.

Creating the works from print editions not protected by U.S. copyright law means that no one owns a United States copyright in these works, so the Foundation (and you!) can copy and distribute it in the United States without permission and without paying copyright royalties. Special rules, set forth in the General Terms of Use part of this license, apply to copying and distributing Project Gutenberg™ electronic works to protect the PROJECT GUTENBERG™ concept and trademark. Project Gutenberg is a registered trademark, and may not be used if you charge for an eBook, except by following the terms of the trademark license, including paying royalties for use of the Project Gutenberg trademark. If you do not charge anything for copies of this eBook, complying with the trademark license is very easy. You may use this eBook for nearly any purpose such as creation of derivative works, reports, performances and research. Project Gutenberg eBooks may be modified and printed and given away—you may do practically ANYTHING in the United States with eBooks not protected by U.S. copyright law. Redistribution is subject to the trademark license, especially commercial redistribution.

START: FULL LICENSE

THE FULL PROJECT GUTENBERG™ LICENSE

PLEASE READ THIS BEFORE YOU DISTRIBUTE OR USE THIS WORK

To protect the Project Gutenberg™ mission of promoting the free distribution of electronic works, by using or distributing this work (or any other work associated in any way with the phrase “Project Gutenberg”), you agree to comply with all the terms of the Full Project Gutenberg License available with this file or online at www.gutenberg.org/license.

Section 1. General Terms of Use and Redistributing Project Gutenberg electronic works

1.A. By reading or using any part of this Project Gutenberg electronic work, you indicate that you have read, understand, agree to and accept all the terms of this license and intellectual property (trademark/copyright) agreement. If you do not agree to abide by all the terms of this agreement, you must cease using and return or destroy all copies of Project Gutenberg electronic works in your possession. If you paid a fee for obtaining a copy of or access to a Project Gutenberg electronic work and you do not agree to be bound by the terms of this agreement, you may obtain a refund from the person or entity to whom you paid the fee as set forth in paragraph 1.E.8.

1.B. “Project Gutenberg” is a registered trademark. It may only be used on or associated in any way with an electronic work by people who agree to be bound by the terms of this agreement. There are a few things that you can do with most Project Gutenberg electronic works even without complying with the full terms of this agreement. See paragraph 1.C below. There are a lot of things you can do with Project Gutenberg electronic works if you follow the terms of this agreement and help preserve free future access to Project Gutenberg electronic works. See paragraph 1.E below.

1.C. The Project Gutenberg Literary Archive Foundation (“the Foundation” or PGLAF), owns a compilation copyright in the collection of Project Gutenberg electronic works. Nearly all the individual works in the collection are in the public domain in the United States. If an individual work is unprotected by copyright law in the United States and you are

located in the United States, we do not claim a right to prevent you from copying, distributing, performing, displaying or creating derivative works based on the work as long as all references to Project Gutenberg are removed. Of course, we hope that you will support the Project Gutenberg mission of promoting free access to electronic works by freely sharing Project Gutenberg works in compliance with the terms of this agreement for keeping the Project Gutenberg name associated with the work. You can easily comply with the terms of this agreement by keeping this work in the same format with its attached full Project Gutenberg License when you share it without charge with others.

1.D. The copyright laws of the place where you are located also govern what you can do with this work. Copyright laws in most countries are in a constant state of change. If you are outside the United States, check the laws of your country in addition to the terms of this agreement before downloading, copying, displaying, performing, distributing or creating derivative works based on this work or any other Project Gutenberg work. The Foundation makes no representations concerning the copyright status of any work in any country other than the United States.

1.E. Unless you have removed all references to Project Gutenberg:

1.E.1. The following sentence, with active links to, or other immediate access to, the full Project Gutenberg License must appear prominently whenever any copy of a Project Gutenberg work (any work on which the phrase “Project Gutenberg” appears, or with which the phrase “Project Gutenberg” is associated) is accessed, displayed, performed, viewed, copied or distributed:

This eBook is for the use of anyone anywhere in the United States and most other parts of the world at no cost and with almost no restrictions whatsoever. You may copy it, give it away or re-use it under the terms of the Project Gutenberg™ License included with this eBook or online at www.gutenberg.org. If you are not located in the United States, you will have to check the laws of the country where you are located before using this eBook.

1.E.2. If an individual Project Gutenberg electronic work is derived from texts not protected by U.S. copyright law (does not contain a notice indicating that it is posted with permission of the copyright holder), the work can be copied and distributed to anyone in the United States without paying any fees or charges. If you are redistributing or providing access to a work with the phrase “Project Gutenberg” associated with or appearing on the work, you must comply either with the requirements of paragraphs 1.E.1 through 1.E.7 or obtain permission for the use of the work and the Project Gutenberg trademark as set forth in paragraphs 1.E.8 or 1.E.9.

1.E.3. If an individual Project Gutenberg electronic work is posted with the permission of the copyright holder, your use and distribution must comply with both paragraphs 1.E.1 through 1.E.7 and any additional terms imposed by the copyright holder. Additional terms will be linked to the Project Gutenberg License for all works posted with the permission of the copyright holder found at the beginning of this work.

1.E.4. Do not unlink or detach or remove the full Project Gutenberg License terms from this work, or any files containing a part of this work or any other work associated with Project Gutenberg.

1.E.5. Do not copy, display, perform, distribute or redistribute this electronic work, or any part of this electronic work, without prominently displaying the sentence set forth in paragraph 1.E.1 with active links or immediate access to the full terms of the Project Gutenberg License.

1.E.6. You may convert to and distribute this work in any binary, compressed, marked up, nonproprietary or proprietary form, including any word processing or hypertext form. However, if you provide access to or distribute copies of a Project Gutenberg work in a format other than “Plain Vanilla ASCII” or other format used in the official version posted on the official Project Gutenberg website (www.gutenberg.org), you must, at no additional cost, fee or expense to the user, provide a copy, a means of exporting a copy, or a means of obtaining a copy upon request, of the work in its original “Plain Vanilla ASCII” or other form. Any alternate format must include the full Project Gutenberg License as specified in paragraph 1.E.1.

1.E.7. Do not charge a fee for access to, viewing, displaying, performing, copying or distributing any Project Gutenberg works unless you comply with paragraph 1.E.8 or 1.E.9.

1.E.8. You may charge a reasonable fee for copies of or providing access to or distributing Project Gutenberg electronic works provided that:

- You pay a royalty fee of 20% of the gross profits you derive from the use of Project Gutenberg works calculated using the method you already use to calculate your applicable taxes. The fee is owed to the owner of the Project Gutenberg trademark, but he has agreed to donate royalties under this paragraph to the Project Gutenberg Literary Archive Foundation. Royalty payments must be paid within 60 days following each date on which you prepare (or are legally required to prepare) your periodic tax returns. Royalty payments should be clearly marked as such and sent to the Project Gutenberg Literary Archive Foundation at the address specified in Section 4, “Information about donations to the Project Gutenberg Literary Archive Foundation.”
- You provide a full refund of any money paid by a user who notifies you in writing (or by e-mail) within 30 days of receipt that s/he does not agree to the terms of the full Project Gutenberg™ License. You must require such a user to return or destroy all copies of the works possessed in a physical medium and discontinue all use of and all access to other copies of Project Gutenberg™ works.
- You provide, in accordance with paragraph 1.F.3, a full refund of any money paid for a work or a replacement copy, if a defect in the electronic work is discovered and reported to you within 90 days of receipt of the work.
- You comply with all other terms of this agreement for free distribution of Project Gutenberg™ works.

1.E.9. If you wish to charge a fee or distribute a Project Gutenberg™ electronic work or group of works on different terms than are set forth in this agreement, you must obtain permission in writing from the Project Gutenberg Literary Archive Foundation, the manager of the Project Gutenberg™ trademark. Contact the Foundation as set forth in Section 3 below.

1.F.

1.F.1. Project Gutenberg volunteers and employees expend considerable effort to identify, do copyright research on, transcribe and proofread works not protected by U.S. copyright law in creating the Project Gutenberg™ collection. Despite these efforts, Project Gutenberg™ electronic works, and the medium on which they may be stored, may contain “Defects,” such as, but not limited to, incomplete, inaccurate or corrupt data, transcription errors, a copyright or other intellectual property infringement, a defective or damaged disk or other medium, a computer virus, or computer codes that damage or cannot be read by your equipment.

1.F.2. LIMITED WARRANTY, DISCLAIMER OF DAMAGES - Except for the “Right of Replacement or Refund” described in paragraph 1.F.3, the Project Gutenberg Literary Archive Foundation, the owner of the Project Gutenberg™ trademark, and any other party distributing a Project Gutenberg™ electronic work under this agreement, disclaim all liability to you for damages, costs and expenses, including legal fees. YOU AGREE THAT YOU HAVE NO REMEDIES FOR NEGLIGENCE, STRICT LIABILITY, BREACH OF WARRANTY OR BREACH OF CONTRACT EXCEPT THOSE PROVIDED IN PARAGRAPH 1.F.3. YOU AGREE THAT THE FOUNDATION, THE TRADEMARK OWNER, AND ANY DISTRIBUTOR UNDER THIS AGREEMENT WILL NOT BE LIABLE TO YOU FOR ACTUAL, DIRECT, INDIRECT, CONSEQUENTIAL, PUNITIVE OR INCIDENTAL DAMAGES EVEN IF YOU GIVE NOTICE OF THE POSSIBILITY OF SUCH DAMAGE.

1.F.3. LIMITED RIGHT OF REPLACEMENT OR REFUND - If you discover a defect in this electronic work within 90 days of receiving it, you can receive a refund of the money (if any) you paid for it by sending a written explanation to the person you received the work from. If you

received the work on a physical medium, you must return the medium with your written explanation. The person or entity that provided you with the defective work may elect to provide a replacement copy in lieu of a refund. If you received the work electronically, the person or entity providing it to you may choose to give you a second opportunity to receive the work electronically in lieu of a refund. If the second copy is also defective, you may demand a refund in writing without further opportunities to fix the problem.

1.F.4. Except for the limited right of replacement or refund set forth in paragraph 1.F.3, this work is provided to you ‘AS-IS’, WITH NO OTHER WARRANTIES OF ANY KIND, EXPRESS OR IMPLIED, INCLUDING BUT NOT LIMITED TO WARRANTIES OF MERCHANTABILITY OR FITNESS FOR ANY PURPOSE.

1.F.5. Some states do not allow disclaimers of certain implied warranties or the exclusion or limitation of certain types of damages. If any disclaimer or limitation set forth in this agreement violates the law of the state applicable to this agreement, the agreement shall be interpreted to make the maximum disclaimer or limitation permitted by the applicable state law. The invalidity or unenforceability of any provision of this agreement shall not void the remaining provisions.

1.F.6. INDEMNITY - You agree to indemnify and hold the Foundation, the trademark owner, any agent or employee of the Foundation, anyone providing copies of Project Gutenberg™ electronic works in accordance with this agreement, and any volunteers associated with the production, promotion and distribution of Project Gutenberg™ electronic works, harmless from all liability, costs and expenses, including legal fees, that arise directly or indirectly from any of the following which you do or cause to occur: (a) distribution of this or any Project Gutenberg work, (b) alteration, modification, or additions or deletions to any Project Gutenberg work, and (c) any Defect you cause.

Section 2. Information about the Mission of Project Gutenberg

Project Gutenberg is synonymous with the free distribution of electronic works in formats readable by the widest variety of computers including obsolete, old, middle-aged and new computers. It exists because of the efforts of hundreds of volunteers and donations from people in all walks of life.

Volunteers and financial support to provide volunteers with the assistance they need are critical to reaching Project Gutenberg's goals and ensuring that the Project Gutenberg collection will remain freely available for generations to come. In 2001, the Project Gutenberg Literary Archive Foundation was created to provide a secure and permanent future for Project Gutenberg and future generations. To learn more about the Project Gutenberg Literary Archive Foundation and how your efforts and donations can help, see Sections 3 and 4 and the Foundation information page at www.gutenberg.org.

Section 3. Information about the Project Gutenberg Literary Archive Foundation

The Project Gutenberg Literary Archive Foundation is a non-profit 501(c)(3) educational corporation organized under the laws of the state of Mississippi and granted tax exempt status by the Internal Revenue Service. The Foundation's EIN or federal tax identification number is 64-6221541. Contributions to the Project Gutenberg Literary Archive Foundation are tax deductible to the full extent permitted by U.S. federal laws and your state's laws.

The Foundation's business office is located at 41 Watchung Plaza #516, Montclair NJ 07042, USA, +1 (862) 621-9288. Email contact links and up to date contact information can be found at the Foundation's website and official page at www.gutenberg.org/contact

Section 4. Information about Donations to the Project Gutenberg Literary Archive Foundation

Project Gutenberg™ depends upon and cannot survive without widespread public support and donations to carry out its mission of increasing the

number of public domain and licensed works that can be freely distributed in machine-readable form accessible by the widest array of equipment including outdated equipment. Many small donations (\$1 to \$5,000) are particularly important to maintaining tax exempt status with the IRS.

The Foundation is committed to complying with the laws regulating charities and charitable donations in all 50 states of the United States. Compliance requirements are not uniform and it takes a considerable effort, much paperwork and many fees to meet and keep up with these requirements. We do not solicit donations in locations where we have not received written confirmation of compliance. To SEND DONATIONS or determine the status of compliance for any particular state visit www.gutenberg.org/donate.

While we cannot and do not solicit contributions from states where we have not met the solicitation requirements, we know of no prohibition against accepting unsolicited donations from donors in such states who approach us with offers to donate.

International donations are gratefully accepted, but we cannot make any statements concerning tax treatment of donations received from outside the United States. U.S. laws alone swamp our small staff.

Please check the Project Gutenberg web pages for current donation methods and addresses. Donations are accepted in a number of other ways including checks, online payments and credit card donations. To donate, please visit: www.gutenberg.org/donate.

Section 5. General Information About Project Gutenberg electronic works

Professor Michael S. Hart was the originator of the Project Gutenberg concept of a library of electronic works that could be freely shared with anyone. For forty years, he produced and distributed Project Gutenberg eBooks with only a loose network of volunteer support.

Project Gutenberg eBooks are often created from several printed editions, all of which are confirmed as not protected by copyright in the U.S. unless a copyright notice is included. Thus, we do not necessarily keep eBooks in compliance with any particular paper edition.

Most people start at our website which has the main PG search facility:
www.gutenberg.org.

This website includes information about Project Gutenberg, including how to make donations to the Project Gutenberg Literary Archive Foundation, how to help produce our new eBooks, and how to subscribe to our email newsletter to hear about new eBooks.